Republic of the Philippines
City of Davao
Office of the Sangguniang Panlungsod
20th City Council
Committee Legislative Hearing Draft
Series of 2026

PRESENT:

Vice Mayor J. Melchor B. Quitain Jr.	- Presiding Officer
Councilor Marissa S. Abella	Councilor Louie John J. Bonguyan
Councilor Nilo M. Abellera Jr.	Councilor Pilar C. Braga
Councilor Luna Maria Dominique S. Acosta	Councilor Jonard C. Dayap
Councilor Bernard E. Al-ag	Councilor Edgar P. Ibuyan Jr.
Councilor Wilberto E. Al-ag	Councilor Richlyn N. Justol-Baguilod
Councilor Al Ryan S. Alejandre	Councilor Diosdado Angelo Junior R. Mahipus
Councilor Dante L. Apostol Sr.	Councilor Bonz Andre A. Militar
Councilor Conrado C. Baluran	Councilor Temujin B. Ocampo
Councilor Jessica M. Bonguyan	Councilor Myrna G. L'Dalodo-Ortiz

ABSENT:

Councilor Alberto T. Ungab	- On Official Business
Councilor Lorenzo Benjamin D. Villafuerte	- On Leave

PROPOSED ORDINANCE NO. 2026-02, SERIES OF 2026

Series of 2026

AN ORDINANCE ENHANCING PUBLIC SAFETY AND SECURITY MEASURES IN OVERLAND TRANSPORT TERMINALS, MANDATING PASSENGER AND BAGGAGE SCREENING, PRESCRIBING TERMINAL REGULATIONS, AND PROVIDING PENALTIES FOR VIOLATIONS THEREOF IN THE CITY OF DAVAO

Be it ordained by the Sangguniang Panlungsod of Davao City, in session assembled, that:

SECTION 1. TITLE - This Ordinance shall be known and cited as the 'Overland Transport Terminal Safety and Security Ordinance of Davao City'.

SECTION 2. DECLARATION OF POLICY - Under Section 16 of Republic Act No. 7160 (The Local Government Code of 1991), the City Government of Davao is authorized to exercise powers essential to the promotion of general welfare, maintenance of peace and order, and protection of public safety.

It is hereby declared the policy of the City of Davao to promote the safety, comfort, and security of passengers, commuters, and transport workers using overland transport terminals by establishing comprehensive security standards and regulating terminal operations throughout the city.

SECTION 3. DEFINITION OF TERMS - For purposes of this Ordinance, the following terms shall be defined as follows:

(a) Overland Transport Terminal - refers to the Davao City Overland Transport Terminal (DCOTT) and all public and private bus depots, van terminals, and public utility staging areas within Davao City;

(b) Terminal Operator - refers to any government office, private corporation, or person operating or managing a public transport terminal;

(c) Security Personnel - refers to organic security guards, members of the Public Safety and Security Office (PSSO), and police officers assigned to maintain order within terminal compounds;

(d) Passenger Baggage - refers to luggage, backpacks, packages, and parcels brought into terminal premises by traveling passengers;

(e) Public Utility Vehicle (PUV) - refers to buses, passenger vans, and jeepneys duly authorized by the LTFRB to transport passengers for compensation.

SECTION 4. MANDATORY PASSENGER AND BAGGAGE SCREENING - All terminal operators shall install, operate, and maintain electronic security screening equipment at all primary passenger entrance gates:

(a) Walk-through metal detectors and hand-held metal detector wands for screening passengers entering passenger waiting areas;

(b) Baggage inspection tables or conveyorized X-ray machines for non-intrusive examination of passenger luggage, backpacks, and large parcels;

(c) Closed-Circuit Television (CCTV) cameras installed at strategic locations including entry gates, ticket counters, and boarding bays, conforming to the provisions of the Davao City CCTV Ordinance;

(d) Adequate physical signage informing passengers of security regulations and prohibited items posted in prominent areas.

SECTION 5. MANDATORY VEHICLE AND CARGO INSPECTION - In the interest of public safety and crime prevention, security personnel, terminal marshals, and law enforcement officers deployed at terminal checkpoints are authorized to stop and conduct thorough physical inspections of all motor vehicles, delivery vans, and private conveyances entering or utilizing terminal staging areas, including opening and inspecting luggage compartments, trunks, and enclosed cargo spaces, and to seize any unauthorized or suspicious articles found therein.

Any driver, owner, or passenger who refuses to permit the opening and inspection of vehicle compartments shall be denied entry, held for police investigation, and cited for an ordinance violation.

SECTION 6. COMMUTER AMENITIES AND SANITARY STANDARDS - All terminal operators shall provide clean, dignified, and functional amenities for traveling passengers without charging comfort room user fees:

(a) Separate, clean toilet facilities for male and female passengers with continuous running water and hand soap;

(b) Adequate and well-lit waiting areas with comfortable seating and natural or mechanical ventilation;

(c) Clear priority assistance lanes and accessible facilities for senior citizens, persons with disabilities (PWDs), and pregnant women pursuant to Batas Pambansa Blg. 344;

(d) Clean drinking water stations accessible to commuters within waiting lounges.

SECTION 7. VEHICULAR ROUTING AND TRAFFIC MANAGEMENT - The City Transport and Traffic Management Office (CTTMO) shall formulate and enforce traffic routing, loading and unloading schedules, and designated vehicle bays within and surrounding all terminal premises.

No public utility vehicle shall pick up or drop passengers along public streets or thoroughfares within one hundred (100) meters of any terminal entrance or exit gate, except at designated CTTMO passenger stops.

SECTION 8. IMPLEMENTING AND MONITORING AGENCIES - The Public Safety and Security Office (PSSO), in coordination with the City Transport and Traffic Management Office (CTTMO) and the Davao City Police Office (DCPO), shall oversee the implementation and enforcement of this Ordinance.

Said agencies shall conduct regular safety audits of transport terminals and ensure that security standards and passenger protections are strictly observed.

SECTION 9. NOTICE OF DEFICIENCY - Whenever a terminal operator fails to maintain required screening equipment or sanitary standards, the PSSO shall issue a written Notice of Deficiency requiring the operator to rectify the deficiency within ten (10) calendar days from receipt thereof.

Failure to comply with the directive within the prescribed period shall subject the operator to the penalties herein provided.

SECTION 10. PENALTIES - Any terminal operator, manager, or person who violates the provisions of this Ordinance shall, upon conviction, be punished as follows:

(a) First Offense: A fine of One Thousand Pesos (Php 1,000.00);

(b) Second Offense: A fine of Three Thousand Pesos (Php 3,000.00);

(c) Third and Subsequent Offenses: A fine of Five Thousand Pesos (Php 5,000.00) or imprisonment for a period of up to six (6) months, or both such fine and imprisonment at the discretion of the court.

For repeated non-compliance by private terminal operators, the City Mayor may revoke the business permit of the terminal facility upon recommendation of the City Legal Officer.

SECTION 11. SEPARABILITY CLAUSE - If any provision or part of this Ordinance is declared invalid or unconstitutional by a competent court, the remaining provisions not affected thereby shall continue in full force and effect.

SECTION 12. EFFECTIVITY - This Ordinance shall take effect fifteen (15) days following its complete publication in a newspaper of local circulation in Davao City.

ENACTED on Committee Review, by the Sangguniang Panlungsod of Davao City.

CERTIFIED CORRECT:

CHARITO N. SANTOS
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

ATTESTED:

J. MELCHOR B. QUITAIN JR.
Vice Mayor
Presiding Officer

APPROVED: _____, 2026

SEBASTIAN Z. DUTERTE
City Mayor

ATTESTED:

ATTY. FRANCIS MARK H. LAYOG
Acting City Administrator